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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGWANFORBI,
Plaintiff,

v.

UNITED PARCEL SERVICE, INC.; and DOES 1 through 10, inclusive,
Defendants.

Case No.: 2:26-cv-02847-DAD-CKD

DEFENDANT UNITED PARCEL SERVICE, INC.'S 12(b)(6) MOTION TO DISMISS

Date: October 05, 2026
Time: 1:30 PM
Courtroom: 4

Action Filed: July 15, 2026
Removal Filed: August 20, 2026

TO THE HONORABLE COURT AND THE PLAINTIFF.

Defendant United Parcel Service, Inc. ("UPS") files this Motion to Dismiss for a failure to state a claim pursuant to Federal Rule of Civil Procedure 12(b)(6) ("Rule 12(b)(6)").

I. INTRODUCTION

On July 15, 2026, Plaintiff, proceeding *pro se*, filed the present action against UPS in the Superior Court for San Joaquin County, asserting various claims related to his belief that UPS violated California's Megan's Law[1] when it denied him employment during the summer of 2024. Plaintiff's Complaint asserts six causes of actions, which, while distinct from one another, all stem from UPS's alleged violation of California's Megan's Law. Specifically, Plaintiff asserts causes of action under: (1) Cal. Penal Code § 290.46(j)(2)(E); (2) failure to hire in violation of public policy; (3) violation of Cal Civ. Code § 1786; (4) invasion of privacy; (5) negligence per se; and (6) unlawful business practices pursuant to Cal. Bus. & Prof. Code § 17200. [ECF No. 1, Exhibit 1, Pltf's Verified Compl., ¶¶32-64]. On August 20, 2026, UPS filed a Notice of Removal, bringing Plaintiff's claims under the purview of this Court based on diversity jurisdiction. [ECF No. 1, UPS's Notice of Removal].

II. STANDARD OF REVIEW

It is settled law that Federal Rule of Civil Procedure 8(a) requires a pleading to contain "a short and plain statement of the claim showing that the pleader is entitled to relief." See *Ashcroft v. Iqbal*, 556 U.S. 662, 678–79, 129 S.Ct. 1937, 173 L.Ed.2d 868 (2009). Under notice pleading in federal court, a plaintiff's complaint must "give the defendant fair notice of what the claim ... is and the grounds upon which it rests." *Bell Atlantic v. Twombly*, 550 U.S. 544, 555, 127 S.Ct. 1955, 167 L.Ed.2d 929 (2007). When a defendant challenges the sufficiency of a complaint under Rule 12(b)(6), the factual allegations in the complaint must be accepted as true, whereas a court "need not assume the truth of legal conclusions cast in the form of factual allegations." *Cardenas v. Cnty. of Tehama*, 476 F. Supp. 3d 1055, 1062 (E.D. Cal. 2020). A Rule 12(b)(6) dismissal is proper when the complaint either fails to allege a "cognizable legal theory" or fails to allege sufficient facts "to support a cognizable legal theory." *Caltex Plastics, Inc. v. Lockheed Martin Corp*., 824 F3fd 1156, 1159 (9th

[1] Cal. Penal Code § 290.46

Cir. 2016); see *Seismic Reservoir 2020, Inc. v. Paulsson* (9th Cir. 2015) (Rule 12(b)(6) dismissal can be based on dispositive legal issue).

III. STATEMENT OF RELEVANT FACTS

During the summer of 2024, Plaintiff applied for employment with UPS at its Lathrop, California facility. [ECF No. 1, Exhibit 1, Pltf's Verified Compl., ¶16]. After Plaintiff completed several steps of the application process, Plaintiff correctly asserts that UPS initiated a background check, as "part of its standard pre-employment screening process." [ECF No. 1, Exhibit 1, Pltf's Verified Compl., ¶17].

After receiving the results of Plaintiff's background check, Plaintiff was then sent a series of "pre-adverse action notice[s]."[ECF No. 1, Exhibit 1, Pltf's Verified Compl., ¶¶18, 19, 25]. UPS ultimately denied Plaintiff's application for employment on or about July 31, 2026. [ECF No. 1, Exhibit 1, Pltf's Verified Compl., ¶25].

IV. LEGAL ARGUMENT AND CITATION TO AUTHORITY

Plaintiff's Complaint fails to state a claim for which any relief may be granted. UPS does not dispute the fact that it used information derived from Plaintiff's criminal background check when it made the decision to not hire him. What UPS does dispute, however, is Plaintiff's assertion that it did so impermissibly. It did not. For the reasons laid out below, UPS requests Plaintiff's Complaint be dismissed with prejudice.

A. Plaintiff's Application for Employment and Subsequent Background Check Should be Incorporated by Reference as Part of the Complaint.

In ruling upon a motion to dismiss, the Court may consider only the complaint, exhibits to the complaint, and matters which may be judicially noticed pursuant to Federal Rule of Evidence 201. *Cardenas*, 476 F. Supp. 3d at 1063 (quoting *Mir v. Little Co. of Mary Hosp.*, 844 F.2d 646, 649 (9th Cir. 1988)). Courts in this District do, however, recognize the incorporation-by-reference doctrine, an exception to the general rule in which the Court can treat "certain documents as though they are part of the complaint itself." *Napear v. Bonneville Int'l Corp.*, 669 F. Supp. 3d 948, 957 (E.D. Cal. 2023). A document may be incorporated by reference into a complaint "if the plaintiff refers

extensively to the document or the document forms the basis of the plaintiff's claim." *United States v. Ritchie*, 342 F.3d 903, 908 (9th Cir. 2003).

The allegations in Plaintiff's Complaint stem from his application for employment with UPS. More specifically, Plaintiff alleges that he was denied employment because UPS used material it found on Plaintiff's criminal background check. [ECF No. 1, Exhibit 1, Pltf's Verified Compl., ¶21]. Plaintiff routinely refers to this background check throughout his Complaint. [ECF No. 1, Exhibit 1, Pltf's Verified Compl., ¶¶ 17-24, 26-27]. Not only does Plaintiff extensively reference this document, but it also forms the basis of his claims. As he stated, Plaintiff believes UPS's decision to deny him employment was based on the information allegedly "disclosed in the First Advantage background screening report." *Id*. at ¶26. Because Plaintiff's background check is extensively referenced *and* forms the basis of his claims, this Court should treat Plaintiff's background check as part of his Complaint. Plaintiff's background check is attached as Exhibit A.

Plaintiff's third cause of action alleges that UPS did not provide Plaintiff with the requisite notice that it was going to obtain his consumer report, in violation of the Investigative Consumer Reporting Agencies Act. [ECF No. 1, Exhibit 1, Pltf's Verified Compl., ¶¶45-48]. Because a document may be incorporated by reference into a complaint "if…the document forms the basis of the plaintiff's claim[,]" this Court should refer to a document signed by Plaintiff consenting to UPS procuring his consumer report. *Ritchie*, 342 F.3d 908. Plaintiff's application for employment with UPS contains the notices and disclosures UPS was required to provide him with in order to obtain his consumer report. The application for employment forms the basis for Plaintiff's claim and should be incorporated by reference into the Complaint. Plaintiff's application is attached as Exhibit B.

B. Plaintiff's Complaint Does Not Assert a Viable Claim for a Violation of California's Megan's Law.

California's Megan's Law prohibits an employer from using "any information that is disclosed pursuant to this section" for any purpose relating to employment. Cal. Penal Code § 290.46(j)(2)(E). Plaintiff argues that this prohibition is "categorical and admits no exception for private employers[.]" [ECF No. 1, Exhibit 1, Pltf's Verified Compl., ¶12]. A plain reading of the statute makes clear that

there are numerous exceptions to this general rule. For instance, Cal. Penal Code § 290.46(j)(3) lists eight enumerated exceptions. Here, most importantly, the statute specifically carves out authorized access of otherwise protected information under Cal. Labor Code. § 432.7. *Id*. That section explicitly states that it does not probit an employer from "conduct[ing] criminal background checks for employment purposes or to restrict employment based on criminal history from complying with those requirements." Cal. Labor Code. § 432.7(n).

What Cal. Labor Code § 432.7 *does* prohibit, is an employer using any record of an arrest or detention that did not result in conviction. Cal. Labor Code. § 432.7(a)(1). But that did not happen here. By alleging that UPS impermissibly accessed California's Megan's Law website, Plaintiff impliedly admits to being convicted of a sex crime that required him to register with the State of California. [ECF No. 1, Exhibit 1, Pltf's Verified Compl., ¶¶10, 21]. Because Plaintiff admits to being convicted of a sex crime, if UPS used Plaintiff's conviction record as part of its analysis when making the decision to not hire him, it was entitled to do so.

Further, even if Plaintiff's assertion that there are no exceptions to Cal. Penal Code § 290.46(j)(2)(E) were true, he still does not possess a valid claim. He does not have a valid claim because UPS did not access California's Megan's Law website when it conducted his criminal background check. When UPS ran Plaintiff's background check, he was included on the *national* sex offender registry. Exhibit A, pgs. 5-6. There is not a single reference to any California based sex offender registry included in the background check UPS obtained. UPS cannot be found to have violated Cal. Penal Code § 290.46(j)(2)(E) if it did not access California's Megan's Law website.

Because UPS only accessed the National Sex Offender Registry when conducting its background check on Plaintiff, it cannot be found to have violated Cal. Penal Code § 290.46(j)(2)(E), and Plaintiff's claim must be dismissed.

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C. Plaintiff's Remaining Causes of Action Must be Dismissed Because They are All Predicated Upon the Erroneous Assumption that UPS Violated Cal. Penal Code § 290.46(j)(2)(E).

Plaintiff bases the remainder of his claims on the assumption that UPS violated Cal. Penal Code § 290.46(j)(2)(E). When that claim fell apart, so did the rest of his claims against UPS. Because Plaintiff cannot not maintain a single viable claim against UPS, his Complaint should be dismissed.

i. A Cause of Action for Failure to Hire in Violation of Public Policy Does Not Exist.

In his Complaint, Plaintiff alleges that California recognizes a tort claim for failure to hire when "an employer refuses to hire an applicant for reasons that violate a fundamental public policy of the State of California." [ECF No. 1, Exhibit 1, Pltf's Verified Compl., ¶39]. The problem with Plaintiff's claim is that it is simply not true. In fact, California courts have definitively disavowed a failure to hire in violation of public policy claim. *See Williams v. Sacramento River Cats Baseball Club, LLC*, 40 Cal. App. 5th 280, 253 Cal. Rptr. 3d 129 (2019); *see also Hodge v. Image Int'l Mfg., LLC*, No. 5:24-CV-01970-HDV-(SPX), 2024 WL 6473762, at *5 (C.D. Cal. Dec. 4, 2024) (stating "there is no such claim under California law").

In support of his argument, Plaintiff cites *Tameny v. Atl. Richfield Co*., 27 Cal. 3d 167, 610 P.2d 1330 (1980). *Tameny* recognized a wrongful termination in violation of public policy claim but was absent any mention of a failure to hire claim on those same grounds. *Id*. California courts have grappled with the idea of a failure to hire in violation of public policy claim. When presented with an argument that the *Tameny* reasoning extends to a failure to hire claim, the court said no. "Plaintiff contends the trial court erred by sustaining defendant's demurrer to his failure to hire cause of action because the reasoning of *Tameny*, recognizing a tort action for wrongful termination in violation of public policy, extends to failure to hire claims. We disagree." Williams, 40 Cal. App. 5th 253 Cal. Plaintiff cannot establish a claim for a cause of action that does not exist, and his failure to hire claim must be dismissed.

ii. Plaintiff Admits UPS Complied with the Investigative Consumer Reporting Agencies Act.

Under the Investigative Consumer Reporting Agencies Act ("ICRAA"), an employer is permitted to obtain a consumer report if the employer: (1) has a permissible purpose to do so; (2) provided a clear and conspicuous disclosure in writing to the consumer that they would be obtaining a report; and (3) the consumer authorized the procurement of the report. Cal. Civ. Code § 1786.16(2)(A)-(C). The use of a consumer report for employment purposes is a permissible use under the first prong of the analysis. Cal. Civ. Code § 1786.12(d)(1). For a disclosure to be clear and conspicuous, it must notify the consumer that: (1) an investigative report may be obtained; (2) state the permissible purpose of the report; (3) that the disclosure may include information on the consumer's character, general reputation, personal characteristics, and mode of living; (4) identify the name, address, and telephone number of the investigative consumer reporting agency conducting the investigation; (5) notify the consumer of the nature and scope of the investigation requested; and (6) notify the consumer of the reporting agency's website or telephone number. Cal. Civ. Code § 1786.16(2)(B)(i)-(vi). UPS complied with each of the requirements.

On his application for employment, UPS clearly and conspicuously informed Plaintiff that it was seeking his express authorization and consent to obtain a consumer report on him. Exhibit B, pg. 7. UPS complied with each of the aforementioned notice requirements and Plaintiff explicitly authorized UPS to obtain the report in writing. *Id.*

Plaintiff admits that on July 22, 2024, after UPS obtained his consumer report it provided him with pre-adverse action notices. [ECF No. 1, Exhibit 1, Pltf's Verified Compl., ¶¶18-19]. It is also not in dispute that UPS later notified Plaintiff on July 31, 2024, of the final adverse action notice. [ECF No. 1, Exhibit 1, Pltf's Verified Compl., ¶25]. Plaintiff also admits that he received several emails containing links to the pre-adverse action and final adverse action notifications. Plaintiff further acknowledges that UPS provided him with communication identifying the basis for the adverse action—the consumer background report. [ECF No. 1, Exhibit 1, Pltf's Verified Compl., ¶27]. UPS complied with each of the requirements of the ICRAA.

The underlying basis for Plaintiff ICRAA claim is the same allegation that was repeated throughout his Complaint—that UPS impermissibly used information it accessed on California's Megan's Law website in making the decision on whether or not to hire Plaintiff in violation of Cal. Penal Code § 290.46(j)(2)(E). As shown in Exhibit A, UPS did not access California's Megan's Law website, meaning UPS could not have impermissibly used the information found on that website. Because UPS did not violate Cal. Penal Code § 290.46(j)(2)(E) and otherwise complied with the ICRAA, Plaintiff ICRAA claim must be dismissed.

iii. Plaintiff Cannot Establish an Invasion of Privacy Claim Under the California Constitution.

California's Constitution does provide protection to an individual's privacy. Cal. Const. art. I, § 1. To establish a claim for invasion of privacy, a plaintiff must "first demonstrate three elements: (1) a legally protected privacy interest; (2) a reasonable expectation of privacy under the circumstances; and (3) conduct by the defendant that amounts to a serious invasion of the protected privacy interest." *Saleh v. Nike, Inc*., 562 F. Supp. 3d 503, 524 (C.D. Cal. 2021) (citing *Hill v. Nat'l Collegiate Athletic Ass'n*, 7 Cal. 4th 1, 40, 26 Cal.Rptr.2d 834, 865 P.2d 633 (1994)). Plaintiff cannot establish a single element.

First, Plaintiff did not have a legally protected privacy interest. Criminal records are public records. "[T]here can be no doubt that court records are public records…" *Est. of Hearst*, 67 Cal. App. 3d 777, 136 Cal. Rptr. 821 (Ct. App. 1977). "The law favors maximum public access to judicial proceedings and court records. Judicial records are historically and presumptively open to the public and there is an important right of access which should not be closed except for compelling countervailing reasons." *Alfaro v. Superior Ct*., 58 Cal. App. 5th 371, 272 Cal. Rptr. 3d 404 (2020) (cleaned up). If court records are open to the public, it goes without saying that Plaintiff does not have a right to privacy based on those records.

However, even if he did, he still cannot maintain a cause of action for an invasion of privacy because a "plaintiff cannot have a reasonable expectation of privacy if she consented to the intrusion." *Saleh*, 562 F. Supp. 3d 524. Plaintiff explicitly consented to UPS obtaining his background check.

Exhibit B, pg. 7. Without a legally protected privacy interest or a reasonable expectation of privacy, there can be no serious invasion of a protected privacy interest. Plaintiff's invasion of privacy claim fails and must be dismissed.

iv. Plaintiff Cannot Establish a Claim for Negligence Per Se.

Plaintiff cannot establish a cause of action for negligence per se because "under California law, negligence per se is a doctrine, not an independent cause of action." *Dent v. Nat'l Football League*, 902 F.3d 1109. 1117 (9th Cir. 2018) (quoting *Quiroz v. Seventh Ave. Ctr.*, 140 Cal.App.4th 1256, 45 Cal.Rptr.3d 222, 244–45 (2006)). The per se doctrine is an evidentiary presumption used to establish only one of the several elements necessary to prove an underlying negligence claim. *Quinn v. Coulton*, 121 Cal. App. 5th 1124, 346 Cal. Rptr. 3d 320 (2026). So, if Plaintiff seeks to use the per se doctrine, he must first establish a viable claim for ordinary negligence. He cannot.

As an initial matter, Plaintiff has not asserted a claim for ordinary negligence, which requires a showing of "duty, breach causation, and damages." *Jack v. Pearson*, No. 1:17-CV-0520-AWI-SAB, 2018 WL 1567796, at *3 (E.D. Cal. Mar. 30, 2018) (quoting *Conroy v. Regents of the Univ. of Cal.*, 45 Cal.4th 1244, 1250 (2009)). Plaintiff fails, nor attempts, to plausibly allege an ordinary negligence cause of action. Instead, he relies on the false presumption that if UPS violated Cal. Penal Code § 290.46(j)(2)(E) he is entitled to recover damages. California caselaw is clear—it is "the tort of negligence, and not the violation of the statute itself, which entitles a plaintiff to recover civil damages." *California Serv. Station & Auto. Repair Ass'n v. Am. Home Assur. Co.*, 62 Cal. App. 4th 1166, 1178 (1998). When a plaintiff fails to allege an underlying negligence claim, they forfeit any basis for applying the negligence per se presumption because the presumption "applies only after determining that the defendant owes the plaintiff an independent duty of care." *Quinn*, 121 Cal. App. 5th 329. Plaintiff does not allege a claim for ordinary negligence because he did not allege that he was owed an independent duty of care, and thus there is no per se presumption to analyze.

Even so, had Plaintiff asserted a claim for ordinary negligence, his assertion of the per se doctrine still falls flat. The per se presumption is predicated upon a violation of a statute. Here, that statute is Cal. Penal Code § 290.46(j)(2)(E). As explained, UPS did not violate the statute in question.

UPS accessed the National Sex Offender's Registry, as explicitly indicated on Plaintiff's background check. Exhibit B, pgs. 6-7. Plaintiff cannot establish a claim for ordinary negligence, nor has he laid the groundwork for applying the per se doctrine. For those reasons, Plaintiff's negligence per se claim must be dismissed.

v. Plaintiff Cannot Establish an Unfair Business Practice Claim Because UPS Did Not Violate Any Statute or Public Policy.

California courts recognize three different buckets of unlawful business practices under Cal. Bus. & Prof. Code, § 17200—acts or practices that are unlawful, unfair, or fraudulent. *Khan v. CitiMortgage, Inc*., 975 F. Supp. 2d 1127, 1144 (E.D. Cal. 2013) (citing *Shvarts v. Budget Group, Inc*., 81 Cal.App.4th 1153, 1157, 97 Cal.Rptr.2d 722 (2000)). Plaintiff cannot establish any of the three.

Plaintiff alleges UPS violated both the unlawful and unfair provisions of the statute. We will thus take the analysis in turn. A business practice is unlawful if it is forbidden by law. *Khan*, 975 F. Supp 2d 1144. "According to the California Supreme Court, the UCL "borrows" violations of other laws and treats them as unlawful practices independently actionable under the UCL." *Id*. (citation omitted). In *Rubio v. Capital One Bank*, the court explained the analysis of a ULC claim based on a plaintiff "borrowing" from another violation of law:

> To state a claim for an "unlawful" business practice under the UCL, a plaintiff must assert the violation of any other law. *Cel–Tech Commc'ns, Inc. v. Los Angeles Cellular Telephone Co.,* 20 Cal.4th 163, 180, 83 Cal.Rptr.2d 548, 973 P.2d 527 (1999) (stating, "By proscribing 'any unlawful' business practice, section 17200 'borrows' violations of other law and treats them as unlawful practices that the unfair competition law makes independently actionable.") (citation omitted). Where a plaintiff cannot state a claim under the "borrowed" law, she cannot state a UCL claim either. See, e.g., *Smith v. State Farm Mutual Automobile Ins. Co*., 93 Cal.App.4th 700, 718, 113 Cal.Rptr.2d 399 (2001). Here, Plaintiff has predicated her "unlawful" business practices claim on her TILA claim. However, as discussed above, Plaintiff's attempt to state a claim under TILA has failed. Accordingly, Plaintiff has stated no "unlawful" UCL claim.

Rubio v. Capital One Bank, 572 F.Supp.2d 1157, 1168 (C.D.Cal.2008), *affirmed in part, reversed in part,* 613 F.3d 1195 (2010). This Court adopted the *Rubio* explanation in *Khan*, 975 F. Supp. 2d 1145. Here, Plaintiff's unlawful business practice claim is once again predicated upon the

false assumption that UPS violated Cal. Penal Code § 290.46(j)(2)(E). Because UPS did not violate the statute, Plaintiff's unlawful business practice claim fails.

A business practice is unfair when it "offends an established public policy or when the practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers." *Khan*, 975 F. Supp 2d 1145 (quoting *Podolsky v. First Healthcare Corp.*, 50 Cal.App.4th 632, 647, 58 Cal.Rptr.2d 89 (1996)). The public policy in play here is the general prohibition of employers using information they found on California's Megan's Law website in their employment decisions. UPS did not do that. UPS could not have offended this established public policy if it did not access California's Megan's Law website.

Even then, caselaw is clear that a plaintiff cannot establish a claim for an unfair business practice under Cal. Bus. & Prof. Code, § 17200 when the legislature has expressly permitted the conduct in question. Courts have said that "[t]here is a difference between (1) not making an activity unlawful, and (2) making that activity lawful." *Cel-Tech Commc'ns, Inc. v. Los Angeles Cellular Tel. Co*., 20 Cal. 4th 163, 183 (1999). Here, we are dealing with the latter. Plaintiff's contention is that UPS violated Cal. Penal Code § 290.46(j)(2)(E), which, if it had, would constitute an unfair business practice under this statute. However, Cal. Penal Code § 290.46(j)(3) provides an exception to the general prohibition by directing us to Cal. Labor Code § 432.7(n), which explicitly permits an employer from conducting a background check and using the information it derives from the background check in its employment decisions. By including the Cal. Labor Code § 432.7 exception in Cal. Penal Code § 290.46, the California legislature clearly contemplated, codified, and enacted this safe harbor, protecting UPS's exact course of action. Accordingly, Plaintiff cannot establish a claim for either an unlawful or an unfair business practice, and this claim must be dismissed.

V. CONCLUSION

The Court should grant UPS's Motion to Dismiss because Plaintiff has failed to state a claim for which relief could possibly be granted. Each of the claims asserted in Plaintiff's Complaint stems from the allegation that UPS impermissibly used information it scraped from California's Megan's Law website in violation of Cal. Penal Code § 290.46(j)(2)(E). As evidenced above, that is not the

case. UPS took information it found on the National Sex Offender Registry and used that information as part of its decision to not hire Plaintiff. Plaintiff cannot work his way around this fatal shortcoming and even with leave to amend his Complaint he would not be able to cure that deficiency. For those reasons, this Court should grant UPS's Motion to Dismiss with prejudice.

DATE: August 26, 2026

MARTENSON, HASBROUCK & SIMON LLP

By: */s/ Vanessa W. Mott*
VANESSA W. MOTT
ALYSSA R. DASKAS
Attorneys for Defendant
United Parcel Service, Inc.

EXHIBIT A

Background Report

Confidential

BRENDAN NGWANFORBI
[redacted]
CID - 291131000

UNITED PARCEL SERVICE
Attn: XCHANGE USER
55 GLENLAKE PARKWAY NE
ATLANTA 30328
ATLANTA 30328

Account No: 235337

If you are a First Advantage Consumer

FirstAdvantage Enterprise Advantage

Please contact the First Advantage Consumer Center at:
1-800-845-6004 Toll Free (within the U.S.)
+1 971-280-8128 Toll Number (outside the U.S.)
Or visit http://fadv.com/our-company/contact-support.aspx for local contact details
For assistance, please contact our Customer Care team at 1-800 -888 -5773, or via chat by visiting http://help.fadv.com/ea

IMPORTANT NOTICE UNDER CALIFORNIA LAW

First Advantage does not guarantee the accuracy or truthfulness of the information as to the subject of the investigation, but only that it is accurately copied from public records. Information generated as a result of identity theft, including evidence of criminal activity, may be inaccurately associated with the consumer who is the subject of this report. In California, First Advantage shall provide a consumer seeking to obtain a copy of a report or making a request to review a file, a written notice in simple, plain English and Spanish setting forth the terms and conditions of his or her right to receive all disclosures.

First Advantage no garantiza la exactitud o veracidad de la información en cuanto al objeto de la investigación, sino que solamente copia la información de los archivos públicos con exactitud. La información generada a raíz del robo de identidad, incluyendo evidencia de actividad criminal, puede ser incorrectamente asociada con el consumidor objeto de este informe. El cliente está de acuerdo y certifica que al ordenar y usar este informe está en estricto cumplimiento de cualesquiera leyes o regulaciones locales, estatales y federales que sean aplicables.

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Caution to Customer: Under the terms of the service agreement, this report is delivered with the understanding that the recipient client will hold the same in strict confidence and not disclose it to third parties and furthermore is to be used only for the purpose indicated in the Client's agreement for service, i.e. employment/volunteer or resident/tenant screening purposes. This report and information provided therein is strictly confidential as it contains personal and sensitive information of the consumer/applicant/candidate/employee and must be utilized solely for the business purposes consistent with the declared purpose in the service agreement and is not to be used by the client or third parties for any other purposes. Client agrees to abide and comply with all applicable laws in connection with this report including data privacy, data protection laws and other similar applicable regulations.

First Advantage is not the source of the data provided in this report in that the data is collected by First Advantage from third party data sources such as public records held in governmental databases or courthouses, schools, colleges, universities, company officials, or third party proprietary databases etc. Accordingly First Advantage does not warrant the accuracy of the information provided by those third parties and expressly disclaims any and all liability for any and all claimed losses, damages, expenses including attorney fees and costs incurred as a result of reliance upon the content of this report.

For US-based Clients or Clients obtaining reports on US residents: Client certifies that it has complied with the Fair Credit Reporting Act(FCRA) and that it has provided a clear disclosure in compliance with the FCRA to the consumer/applicant/candidate/employee and obtained consent and authorization from the consumer/applicant/candidate employee in order to receive this report. If the client intends to take adverse action based in whole or in part on the contents of this report, the client must provide the consumer with a copy of the report, a summary of consumers rights as prescribed by FCRA section 1681g(c)(3) and a copy of any applicable state law rights, if required before taking any action, wait a reasonable period of time for the consumer to dispute any inaccurate information and then can take adverse action. First Advantage has provided your company with copies of the CFPB Summary of Rights for this purpose.

For California based Clients or Clients obtaining reports on California residents: In California an investigative consumer reporting agency shall provide a consumer seeking to obtain a copy of a report or making a request to review a file, a written notice in simple, plain English and Spanish setting forth the terms and conditions of his or her right to receive all disclosures.

For more information regarding the obligations of users of Consumer Reports under the FCRA, visit
http://www.fadv.com/Portals/0/Downloads/cfpb-notice-to-users-fcra.pdf.

General Consumer Information

Consumer's Name BRENDAN NGWANFORBI

FOUNTAIN APPLICANT ID AEAD84F6-29F4-40C9-A2E4-36FC26A4A4F9

Client Name UNITED PARCEL SERVICE

REQUESTORS EMAIL UPSFADVFOLLOWUP@UPS.COM

Client ID 235337

Client Representative XCHANGE USER

The following consumer information was used in the production of this report:
Last Name, First Name, Middle Name, SSN, Date of Birth, Address

SSN [redacted]

Address [redacted]

Date of Birth [redacted]

Other Names

Not Provided

Information Regarding this Order:

Position Applied For

Date Ordered 17/Jul/2024 09:52:19 PM

Background Check Completion Date 18/Jul/2024 06:50:04 PM

Report Last Updated on 18/Jul/2024 06:50:04 PM

Date Report Printed 05/Aug/2026 10:02:50 AM

Report ETA 19/Jul/2024

Revised Report ETA 18/Jul/2024

Self-Disclosed Criminal History
None

UDFS	
Label	**Value**
-	
Primary Job Location	US - LATHROP HUB (CALAH)
RRDDOpTypeCenterSort	1019HUB9539T
FountainApplicantId	aead84f6-29f4-40c9-a2e4-36fc26a4a4f9
Job Profile	H345 - Loader/Unloader - Hub
Cost Center	CC_9539T
RRDD	1019

All timestamps represent US Eastern Time

Note that different elements were searched and completed at different times from the start of the order - please refer to the timestamp associated with each element.

First Advantage Background Report Summary

Consumer's Name BRENDAN NGWANFORBI **Date Ordered:** 17/Jul/2024 09:52:19 PM

Background Check Completion Date: 18/Jul/2024 06:50:04 PM

Score Result 07/19/2024 - BASED ON YOUR CRITERIA, THE OVERALL CASE SCORE IS INELIGIBLE

Package Name: STANDARD PACKAGE			
Package Searches Ordered	**Status**	**Review**	**Score**
Social Security Verification	Complete	No	
Social Security Verification	Complete	No	Pass
First Advantage National Criminal File Plus	Complete	No	
First Advantage National Criminal File Plus STOCKTON, SAN JOAQUIN, CA	Complete	No	Eligible
National Sex Offender Registry	Complete	Yes**	
National Sex Offender Registry Search - Department Of Justice Web Site	Complete	Yes**	Decisional
Additional Searches Ordered			
NONE			

Remark

City Ordinance, State, or Federal law requires additional action and disclosure by employer to consumer prior to taking adverse action based on Consumer Report. FADV cannot provide Adverse Action letter mailing service on this candidate.

Comments

Adjudicated by the Centralized Adjudication Team

* Further review is required by the client to determine the consumer's eligibility based on background check results. Please refer to the corresponding detailed component report section for additional information.

** Further review is required by the client to determine the consumer's eligibility based on background check results. Please refer to the corresponding detailed component report section for additional information.

*** This product has been blocked from delivery due to compliance related restrictions.

**** Criminal Background Check to be completed after all other elements are completed as per customer's instructions for compliance with NYC Fair Chance Law.

Social Security Verification
Date Completed: 17/Jul/2024

Status: Complete
Score: Pass

The Social Security Number Verification (SSNV) matches the given SSN against consumer credit files contained in the databases of nationwide credit reporting agencies. The credit bureaus' consumer credit files contain information provided by companies with which the consumer has had financial dealings and/or public record information collected by the bureaus from the courts. The SSNV does not verify that the Social Security Administration issued a specific SSN to a consumer.

Social Security Verification results and Remarks returned from this search are for informational purposes and should not be relied upon as a basis for determining the eligibility of a consumer for credit, insurance, employment or any other product or service, without additional review with and clarification from the consumer.

SOCIAL SECURITY VERIFICATION NAME AND ADDRESS INFORMATION OBTAINED FROM: EXPERIAN

Customer Provided Information	
SSN [redacted]	**DOB** [redacted]

SSN State Issued
SSN Year Issued 2011

Name Type Report Subject — **Name** NGWA-NFORBI, BRENDAN NGEHSI
Name Type Former Name — **Name** NGWA, NFORBI BRENDAN

Addr Type Residence Address — **First Date** 04/01/2015 **Last** 04/01/2015
Address 4770 GYM 158 B DR
LAS VEGAS, NV 89119

Addr Type Former Address — **First Date** 06/01/2016 **Last** 07/01/2016
Address 490 W RIVERVIEW CIR
RENO, NV 89509

Addr Type Former Address — **First Date** 12/01/2014 **Last** 04/01/2017
Address 2535 GIMELLI CT APT 50
SAN JOSE, CA 95133

Addr Type Former Address — **First Date** 10/01/2020 **Last** 06/01/2021
Address 30 N GOULD ST STE 1916
SHERIDAN, WY 82801

Addr Type Former Address — **First Date** 08/01/2021 **Last** 05/01/2024
Address [redacted]

Employment Type ES
Employer Name FEDEX

Remarks and/or Social Security Alerts

07/17/24: SUBJECT NAME RETURNED MATCHED WITH A DEVELOPED NAME.

07/17/24: SSN PROVIDED WAS CHECKED AGAINST THE DEATH MASTER INDEX AND NO MATCH WAS REPORTED.

07/17/24: NO ALERTS RETURNED FROM SEARCH.

Order Process History	
Date	**Description**
17/Jul/2024 09:52:20 PM	Search In Progress.
17/Jul/2024 09:52:20 PM	Record Judged.

First Advantage National Criminal File Plus STOCKTON, SAN JOAQUIN, CA
Date Completed: 17/Jul/2024

Status: Complete
Score: Eligible

Record Source	DATABASE SEARCH
Search Results	No Record Found
Search Type	First Advantage National Criminal File Plus Search
Date of Search	17/Jul/2024
Address Covered	[redacted]
Address City Covered	
Address County Covered	
Address State Covered	
Address Zip	

Given Name Searched	BRENDAN NGWANFORBI
Developed Name Searched	BRENDAN NGEHSI NGWA-NFORBI, NFORBI BRENDAN NGWA

Order Process History	
Date	**Description**
17/Jul/2024 09:52:20 PM	Record Ordered.
17/Jul/2024 10:01:07 PM	Search In Progress.
17/Jul/2024 10:01:07 PM	Record Judged.

National Sex Offender Registry Search - Department Of Justice Web Site
Date Completed: 18/Jul/2024

Status: Complete
Score: Decisional

Record Source	NATIONAL SEX OFFENDER REGISTRY
Search Results	Record Found
Search Type	NATIONAL SEX OFFENDER REGISTRY SEARCH-DEPT OF JUSTICE
Date of Search	18/Jul/2024
Search Period	07/03/2017 - 07/03/2024
Given Name Searched	BRENDAN NGWANFORBI
Developed Name Searched	NFORBI BRENDAN NGWA, BRENDAN NGWANFORBI, BRENDAN NGEHSI NGWA-NFORBI
Name on File	BRENDAN NGEHSI NGWANFORBI
Address on File	[redacted]
DoB on File	[redacted]
Sentence	SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY SENTENCE: REGISTERED SEX OFFENDER

Source Status History	
Status Date	**Description**
17/Jul/2024 09:52:53 PM	Search in progress. Estimated completion by 07/18/2024

Order Process History	
Date	**Description**
17/Jul/2024 09:52:20 PM	Search In Progress.
17/Jul/2024 09:52:21 PM	Search In Progress.
18/Jul/2024 04:04:50 AM	Search In Progress.
18/Jul/2024 06:25:34 PM	Record Judged.

EXHIBIT B

[redacted]

US - LATHROP HUB (CALAH) - 75456-Loader/Unloader - Hub - H345 - E&L - Twilight Monday-Friday 15:00-23:30 - External (current)

Qualification Questions (Data) - *Completed 07/17/2024 06:46PM*

Instructions

UPS is an equal opportunity employer. UPS does not discriminate on the basis of race, color, religion, sex, national origin, veteran, disability, age, sexual orientation, gender identity, or any other characteristic protected by law.

Do you have reliable transportation?

true

Can you perform these essential functions with or without reasonable accommodations?

Yes

Are you a U.S. citizen or otherwise authorized to work in the United States?

Yes

Are you at least 18 years old?

Yes

Disqualifying Rule (Rule) - *Completed 07/17/2024 06:46PM*

General Information + Standard (Data) - *Completed 07/17/2024 06:47PM*

Do you or have you ever had any relative(s) employed by UPS or any UPS subsidiary?

No

What is your relative's name?

No Answer Provided

What is your relative's location?

No Answer Provided

Have you ever been employed by UPS or any UPS subsidiary?

No

Have you ever been assigned to work at UPS or any UPS subsidiary through a temporary agency?

No

What is your current address?

[redacted]

Virtual Tour (Data) - *Completed 07/17/2024 06:47PM*

Instructions

Please review the video and select your acknowledgement.

Please confirm you've watched the virtual tour

Confirmed

Please designate your selection:

Yes, I want to continue my application

Are you sure you want to discontinue? This will terminate your application

No Answer Provided

Virtual Tour Rule (Rule) - *Completed 07/17/2024 06:47PM*

Arbitration Agreement (Data) - *Completed 07/17/2024 06:47PM*

Instructions

ARBITRATION AGREEMENT / LIMITATION OF RIGHTS

1. How This Agreement Applies. This Arbitration Agreement / Limitation of Rights ("Agreement") is a contract governed by the Federal Arbitration Act ("FAA"), 9 U.S.C. § 1 et seq., and evidences a transaction involving commerce. This Agreement is between United Parcel Service, Inc. or one of its affiliates, subsidiaries, or parent companies (the "Company") and Employee (sometimes also referred to as "you" or "your"). This Agreement is intended to be as broad as legally permissible, and, except as set forth in Section 2 of this Agreement below, it applies to all claims or controversies, past, present, or future, that otherwise would be resolved in a court of law or before a forum other than arbitration related in any way to your employment, including, without limitation, disputes arising out of or related to Employee's application and selection for employment, employment or relationship with the Company, and/or the termination of employment with the Company. Except as provided in Section 2 of this Agreement, this Agreement applies to any dispute, past, present, or future, that the Company may have against you or that you may have related to your application for employment, employment and/or termination of your employment against: (1) Company; (2) its officers, directors, principals, shareholders, members, owners, employees, or agents; (3) Company's benefit plans or the plan's sponsors, fiduciaries,

administrators, affiliates, property, and all successors and assigns of any of them. Each and all of the entities or individuals listed in (1) through (4) of the preceding sentence can enforce this Agreement against you and you can enforce this Agreement against each of those entities or individuals, and in the event of such enforcement, the term "Company" shall include such entity or individual for purposes of enforcement of this Agreement. **All disputes covered by this Agreement will be decided by a single arbitrator through final and binding arbitration and not by way of court or jury trial.**

Except as set forth in Section 2 below, this Agreement applies to disputes arising out of or relating to the application for employment, background checks, privacy, employment relationship, or the termination of that relationship (including post-employment defamation or retaliation), trade secrets, seating, unfair competition, compensation, classification, minimum wage, expense reimbursement, overtime, meal breaks and rest periods, retaliation, discrimination, or harassment (with the exception noted below in Section 2(iii) for sexual harassment and sexual assault claims covered under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act), and claims or disputes which could be asserted or arise under the Fair Credit Reporting Act, Defend Trade Secrets Act, Civil Rights Act of 1964, 42 U.S.C. §1981, Rehabilitation Act, Civil Rights Acts of 1866 and 1871, Civil Rights Act of 1991, 8 U.S.C. § 1324b (unfair immigration related practices), 41 U.S.C. § 4712, Pregnancy Discrimination Act, Equal Pay Act, Americans With Disabilities Act, Age Discrimination in Employment Act, Older Workers Benefit Protection Act, Occupational Safety and Health Act, Family and Medical Leave Act, Fair Labor Standards Act, Employee Retirement Income Security Act (except for claims for employee benefits under any benefit plan sponsored by the Company and covered by the Employee Retirement Income Security Act of 1974 or funded by insurance), Affordable Care Act, Genetic Information Non-Discrimination Act, Uniformed Services Employment and Reemployment Rights Act, Worker Adjustment and Retraining Notification Act, Consolidated Omnibus Budget Reconciliation Act of 1985, the False Claims Act, and state statutes or regulations, if any, addressing the same or similar subject matters, and any other employment-related claims for violation of any federal, state or other governmental law, statute, regulation, or ordinance.

Additionally, the Arbitrator, and not any federal, state, or local court or agency, shall have exclusive authority to resolve any dispute relating to the validity, applicability, enforceability, unconscionability, or waiver of this Agreement, including, but not limited to any claim that all or any part of this Agreement is void or voidable. However, the preceding sentence does not apply to any claims under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act, and it will not apply to the Class Action Waiver, Collective Action Waiver, and/or PAGA Individual Action Requirement. Regardless of anything else in this Agreement and/or any rules or procedures that might otherwise apply because of this Agreement (including without limitation the American Arbitration Association Rules discussed below) or any amendments and/or modifications to those rules, any disputes concerning the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act and/or any claim that all or any portion of the Class Action Waiver, Collective Action Waiver, and/or PAGA Individual Action Requirement is invalid, unenforceable, unconscionable, void or voidable, will be determined only by a court of competent jurisdiction and not by an arbitrator.

2. Limitations on How This Agreement Applies. The following claims are not covered under this Agreement: (i) Workers' compensation benefits, state disability insurance benefits or unemployment insurance benefits; however, the Agreement applies to discrimination or retaliation claims based upon seeking such benefits; (ii) disputes that an applicable federal statute expressly states cannot be arbitrated or subject to a pre-dispute arbitration agreement; (iii) disputes that may not be subject to pre-dispute arbitration agreement under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (at Employee's election); and (iv) claims that are not subject to predispute arbitration agreement as provided by the Sarbanes Oxley Act, 18 U.S.C. § 1514. If any arbitrable claims are combined with claims not covered above, those arbitrable claims will proceed in arbitration under the terms of this Agreement before the non-arbitrable claims.

This Agreement is not intended to supplant or contravene the resolution through a grievance proceedings of any dispute or claim relating to employment which is subject to specified dispute-resolution procedures contained in any applicable collective bargaining agreement.

Nothing in this Agreement prevents you from making a report to or filing a claim or charge with a government agency, including without limitation the Equal Employment Opportunity Commission, U.S. Department of Labor, National Labor Relations Board, Securities and Exchange Commission, Occupational Safety and Health Administration, or law enforcement authorities. Nothing in this Agreement prevents the investigation by a government agency of any report, claim or charge otherwise covered by this Agreement. This Agreement also does not prevent federal administrative agencies from adjudicating claims and awarding remedies based on those claims, even if the claims would otherwise be covered by this Agreement. Nothing in this Agreement prevents or excuses a party from satisfying any conditions precedent and/or exhausting administrative remedies under applicable law before bringing a claim in arbitration. The Company will not retaliate against you for filing a claim with an administrative agency or for exercising rights (individually or in concert with others) under the National Labor Relations Act. This Agreement also does not prevent or prohibit you from reporting, communicating about, or disclosing claims for discrimination, harassment, retaliation, or sexual abuse.

You or the Company may apply to a court of competent jurisdiction for temporary or preliminary injunctive relief in connection with an arbitrable controversy in accordance with applicable law, and any such application shall not be deemed incompatible with or waiver of this Agreement. The court to which the application is made is authorized to consider the merits of the arbitrable controversy to the extent it deems necessary in making its ruling, but only to the extent permitted by applicable law. All determinations of final relief, however, will be decided in arbitration.

3. Arbitration Procedures and Selection. Unless you and the Company mutually agree otherwise, the Arbitrator shall be an attorney experienced in arbitrating employment law disputes and licensed to practice law in the state in which the arbitration is convened or a retired federal or state judicial officer from any jurisdiction. The location of the arbitration proceeding shall be in the county and in the same state where you last worked for the Company, unless each party to the arbitration agrees in writing otherwise.

You and the Company will mutually select the neutral Arbitrator, who shall make disclosures to both parties. If the parties cannot mutually select an arbitrator through good faith and informal communications, the parties will each submit a list of 5 proposed arbitrators to the other side for consideration. If the parties still cannot mutually agree to an Arbitrator, the arbitration will be held under the auspices of the American Arbitration Association ("AAA"), and except as provided in this Agreement, will be under the then-current AAA Employment

Arbitration Rules ("AAA Rules") (the AAA Rules are available through Human Resources or via the internet at www.adr.org/employment or by using a service such as www.google.com to search for "AAA Employment Arbitration Rules"); provided however, that if there is a conflict between the AAA Rules and this Agreement, this Agreement shall govern.

If the parties cannot mutually agree to an Arbitrator, the Arbitrator will be selected as follows: The AAA will give each party a list of nine (9) arbitrators (who are subject to the qualifications listed above) drawn from its panel of arbitrators. Each party will have ten (10) calendar days to strike all names on the list it deems unacceptable. If only one common name remains on the lists of all parties, that individual will be designated as the Arbitrator. If more than one common name remains on the lists of all parties, the parties will strike names alternately from the list of common names by telephone conference administered by AAA, with the party to strike first to be determined by a coin toss conducted by AAA, until only one remains. If no common name remains on the lists of all parties, the AAA will furnish an additional list of nine (9) arbitrators from which the parties will strike alternately by telephone conference administered by AAA, with the party to strike first to be determined by a coin toss conducted by AAA, until only one name remains. That person will be designated as the Arbitrator. If the individual selected cannot serve, AAA will issue another list of nine (9) arbitrators and repeat the alternate striking selection process. If for any reason the AAA will not administer the arbitration, or is unwilling to administer the arbitration consistent with this Agreement, either party may apply to a court of competent jurisdiction with authority over the location where the arbitration will be conducted for appointment of a neutral Arbitrator, who shall act under this Agreement with the same force and effect as if he or she had been specifically named herein.

The Arbitrator may award any remedy to which a party is entitled under applicable law, but remedies will be limited to those that would be available to a party in his or her individual capacity for the claims presented to the Arbitrator, and no remedies that otherwise would be available to an individual under applicable law will be forfeited. The Arbitrator shall apply the substantive federal, state, or local law applicable to the claims asserted. Either party may file dispositive motions, including without limitation a motion to dismiss and/or a motion for summary judgment, and the Arbitrator will apply the standards governing such motions under the Federal Rules of Civil Procedure.

4. Starting the Arbitration. The party bringing the claim must demand arbitration in writing and deliver the written demand by hand or first-class mail to the other party within the applicable statute of limitations period. The demand for arbitration shall include identification of the parties, a statement of the legal and factual basis of the claim(s), and a specification of the remedy sought. Any demand for arbitration made to the Company shall be provided to the UPS Service of Process Manager, Building 3, Floor 4, 55 Glenlake Parkway, NE, Atlanta, GA 30328 or to the Company's designated agent for service of process in the state of

your primary employment with the Company. You will be given notice of any demand for arbitration by the Company at the last home address you provided to the Company, which you are encouraged and required to keep current. The demand for arbitration must be signed by the party making the demand for arbitration (by you personally or by an authorized representative of the Company). The Arbitrator shall resolve all disputes regarding the timeliness or propriety of the demand for arbitration.

5. Class and Collective Action Waivers. The Company and you agree to bring any claim on an individual basis and not on a class and/or collective action basis. Accordingly,

(a) There will be no right or authority for any dispute to be brought, heard, or arbitrated as a class action and the Arbitrator will have no authority to hear or preside over any such claim ("Class Action Waiver"). The Class Action Waiver shall be severable from this Agreement if there is a final judicial determination that the Class Action Waiver is invalid, unenforceable, unconscionable, void or voidable. In such instances, the class action must be litigated in a civil court of competent jurisdiction—not in arbitration.

(b) There will be no right or authority for any dispute to be brought, heard, or arbitrated as a collective action and the Arbitrator will have no authority to hear or preside over any such claim ("Collective Action Waiver"). The Collective Action Waiver shall be severable from this Agreement if there is a final judicial determination that the Collective Action Waiver is invalid, unenforceable, unconscionable, void or voidable. In such instances, the collective action must be litigated in a civil court of competent jurisdiction—not in arbitration.

6. Private Attorneys General Act ("PAGA") Individual Action Requirement: You and the Company agree to arbitrate PAGA claims on an individual basis only. Therefore, any claim by you under PAGA to recover for unpaid wages, civil penalties, or other individual relief must be arbitrated under this Agreement. You and the Company also agree and stipulate that any non-individual PAGA claims shall be stayed in the trial court, pending a final determination and written decision by the Arbitrator in arbitration with respect to your alleged status as an "aggrieved employee," and you and the Company agree that the Arbitrator, and not the court, will make this determination. The Arbitrator is without authority to preside over any PAGA claim by you on behalf of any other person or joined by or consolidated with another person's or entity's PAGA claim. This PAGA Individual Action Requirement clause will be severable from this Agreement if there is a final judicial determination that it is invalid, unenforceable, unconscionable, void or voidable. In such case, the PAGA action must be litigated in a civil court of competent jurisdiction—not in arbitration—but the portion of the PAGA Individual Action Requirement that is enforceable shall be enforced in arbitration.

7. Discovery and Subpoenas. You and the Company are entitled to adequate civil discovery sufficient to explore the factual basis of the claims and defenses asserted. Accordingly, each party may take the deposition of 3 individual fact witnesses and any expert witness designated by another party. Each party also may propound requests for production of documents and 10 interrogatory requests to the other party. And, each party may also subpoena witnesses and documents for discovery or the arbitration hearing, including testimony and documents relevant to the case from third parties, in accordance with any applicable state or federal law. Additional discovery may be conducted by mutual stipulation, and the Arbitrator will have exclusive authority to entertain requests for additional discovery, and to grant or deny such requests, based on the arbitrator's determination whether additional discovery is warranted by the circumstances of a particular case. The Arbitrator will have exclusive authority to resolve discovery disputes.

8. Paying for the Arbitration. You and the Company shall follow the mutually chosen Arbitrator's or AAA Rules (if the parties cannot mutually select an arbitrator) applicable to initial filing fees, but in no event will you be responsible for any portion of those fees in excess of the filing or initial appearance fees applicable to court actions in the jurisdiction where the arbitration will be conducted. After you pay your portion of any initial filing fee, the Company shall pay any remaining portion of the initial fee and also will pay all costs and expenses unique to arbitration, including without limitation the Arbitrator's fees. Each party will pay for its own costs and attorneys' fees, if any, but if any party prevails on a claim which affords the prevailing party attorneys' fees, the Arbitrator is authorized to award reasonable fees to the prevailing party as provided by law. The Arbitrator will resolve any disputes regarding costs/fees associated with arbitration.

9. The Arbitration Hearing and Award. The Arbitrator will issue a decision or award in writing, stating the essential findings of fact and conclusions of law. A court of competent jurisdiction shall have the authority to enter a judgment upon the award made pursuant to the arbitration.

10. Non-Retaliation. It is against Company policy for any Employee to be subject to retaliation if he or she exercises his or her right to assert claims under this Agreement. If you believe that you have been retaliated against by anyone at the Company, you should immediately report this to the Company's UPS Ethics Hotline at 1-800-220-4126.

11. Enforcement of This Agreement. This Agreement is the full and complete agreement about arbitration of disputes covered by this Agreement. Any contractual disclaimers the Company has in any handbooks, other agreements, or policies do not apply to this Agreement. If the FAA does not apply to a particular dispute or to one or both parties, the parties agree that the Ohio Arbitration Act ("OAA"), Ohio R.C. Ch. § 2711.01 et seq., will apply and they acknowledge that United Parcel Service, Inc. is an Ohio corporation. If neither the FAA or OAA apply, the parties stipulate and agree the arbitration law of the jurisdiction where the arbitration will take place will apply. This Agreement will survive the termination of your employment and the expiration of any benefit, and it will continue to apply upon your transfer to any parent, subsidiary or affiliate of the Company or re-employment by the Company if your employment is ended but later renewed until the last possible statute of limitation for any claim which is covered by this Agreement has lapsed, taking into account any applicable tolling. Subject to Sections 5 and 6 above (which include their own severability provisions), in the event any portion of this Agreement is deemed unenforceable, the remainder of this Agreement will be enforceable. However, under no circumstances may the Arbitrator hear or preside over any class, collective, or other claim joined by or consolidated with another person's or entity's claim, unless all parties agree in writing. This Agreement does not alter the "at-will" status of your employment.

12. Seasonal Hire. If the Employee is hired for a position denoted as "seasonal," and/or the Employee is hired during a "peak" seasonal period as defined in any applicable collective bargaining agreement, you acknowledge that your employment is temporary, that you have no guarantee of full-time or part-time employment with UPS, and that your employment may be terminated at the end of the seasonal period (for "peak" seasonal hires, on or before the last day of January in the year following your hire). You further acknowledge that, as a seasonal hire, you are an at-will employee, and, as such, your employment may be discontinued at any time.

13. Limitation of Rights/ Contractual Statute of Limitations. To the extent the law allows the Employee to bring claims against the Company or the Company to bring claims against the Employee, whether by arbitration or in a court of law but excluding the grievance procedure under any applicable collective bargaining agreement, you and the Company agree to bring any such claim by the earlier of the time provided by law or the time allotted by the provision below that applies to the claim:

(a) if the claim arises under California law and requires the filing of a charge with an administrative agency before an arbitration or court action may be instituted, six (6) months from issuance of the right to sue by the administrative agency;

(b) if the claim does not arise under California law but requires the filing of a charge with an administrative agency before an arbitration or court action may be instituted, twelve (12) months from the event forming the basis of the claim;

(c) for all other claims, six (6) months from the event forming the basis of the claim.

You and the Company acknowledge that you and the Company are agreeing to bring any claim within a shorter time than may otherwise be provided by law. Section 13 does not apply to claims arising under the laws of Florida or South Carolina or over which the Oregon Bureau of Labor & Industries has enforcement authority, and shall be deemed inoperative with respect to any such claim. In the event this provision is deemed unenforceable, the legally applicable statutes of limitations will apply.

Document version dated 11.3.2025

Stage Body

BY CLICKING THE ACKNOWLEDGMENT BOX AND TYPING YOUR NAME, YOU ARE PROVIDING YOUR "ELECTRONIC SIGNATURE" AND YOU ARE ACKNOWLEDGING THAT YOU HAVE READ, REVIEWED, UNDERSTOOD, AND AGREED TO THIS AGREEMENT. YOU ALSO AUTHORIZE THE USE OF AN ELECTRONIC SIGNATURE AS YOUR ACCEPTANCE TO THIS AGREEMENT, AND UNDERSTAND AND ACKNOWLEDGE THAT YOUR ELECTRONIC SIGNATURE is intended to show YOUR acceptance and IS AS VALID AND HAS THE SAME LEGAL EFFECT AS AN INK SIGNATURE.

Yes

Please type your legal first name and last name below.

Brendan Ngwanforbi

EEO Questionnaire (Voluntary) Gender + Race (Data) - *Completed 07/17/2024 06:47PM*

Instructions

As an Equal Opportunity/Affirmative Action employer, UPS is required to keep certain records concerning employees and applicants for employment. This information is strictly confidential except to the extent that disclosure is required by applicable policy or law. It will be used for record-keeping purposes only. You are invited to identify your gender and race/ethnicity by using this form. Providing this information is strictly voluntary and neither providing it nor declining the invitation to provide it will adversely affect your application for employment in any way.

Equal opportunity is the law: link

No Questions Available For This Stage

EEO Questionnaire (Voluntary) Veteran (Data) - *Completed 07/17/2024 06:48PM*

Instructions

This employer is a Government contractor subject to the Vietnam Era Veterans' Readjustment Assistance Act of 1974, as amended by the Jobs for Veterans Act of 2002, 38 U.S.C.4212 (VEVRAA), which requires Government contractors to take affirmative action to employ and advance in employment: (1) disabled veterans; (2) recently separated veterans; (3) active duty wartime or campaign badge veterans; and (4) Armed Forces service medal veterans. These classifications are defined as follows:

A "disabled veteran" is one of the following:

- A veteran of the U.S. military, ground, naval or air service who ¡s entitled to compensation (or who but for the receipt of military retired pay would be entitled to compensation) under laws administered by the Secretary of Veterans Affairs; or
- A person who was discharged or released from active duty because of a service-connected disability.
- A "recently separated veteran" means any veteran during the three-year period beginning on the date of such veteran's discharge or release from active duty in the U.S.military, ground, naval, or air service.
- An "active duty wartime or campaign badge veteran" means a veteran who served on active duty in the U.S. military, ground, naval or air service during a war, or in a campaign or expedition for which a campaign badge has been authorized under the laws administered by the Department of Defense.

"Period of War" is defined for these purposes by the Department of Labor as:

- June 27, 1950 – January 31, 1955 (Korean Conflict);
- February 28, 1961 – May 7, 1975 (for veterans serving in the Republic of Vietnam);
- August 5, 1964 – May 7, 1975 (for all other veterans who served during the Vietnam conflict); and
- August 2, 1990 – present (Gulf War)
- Information on the wars, campaigns, or expeditions for which a campaign badge has been authorized may be found on the following website, https://www.opm.gov/policy-data-oversight/veterans-services/vet-guide/.

An "Armed forces service medal veteran" means a veteran who, while serving on active duty in the U.S. military, ground, naval or air service, participated in a United States military operation for which an Armed Forces service medal was awarded pursuant to Executive Order 12985.

Protected veterans may have additional rights under USERRA - the Uniformed Services Employment and Reemployment Rights Act. In particular, if you were absent from employment in order to perform service in the uniformed service, you may be entitled to be reemployed by your employer in the position you would have obtained with reasonable certainty if not for the absence due to service. For more information, call the U.S. Department of Labor's Veterans Employment and Training Service (VETS), toll-free, at 1-866-4-USA-DOL.

As a Government contractor subject to VEVRAA, we are required to submit a report to the United States Department of Labor each year identifying the number of our employees belonging to a "protected veteran" category. If you believe you belong to any of the categories of protected veterans listed above, please indicate by checking the appropriate box below.

Submission of this information is voluntary and refusal to provide it will not subject you to any adverse treatment. The information provided will be used only in ways that are not inconsistent with the Vietnam Era Veterans' Readjustment Assistance Act of 1974, as amended.

The information you submit will be kept confidential, except that (i) supervisors and managers may be informed regarding restrictions on the work or duties of disabled veterans, and regarding necessary accommodations; (ii) first aid and safety personnel may be informed, when and to the extent appropriate, if you have a condition that might require emergency treatment; and (iii) Government officials engaged in enforcing laws administered by the Office of Federal Contract Compliance Programs, or enforcing the Americans with Disabilities Act, may be informed.

UPS maintains an affirmative action program designed to promote the employment and advancement in employment of veterans; including the protected veterans listed above consistent with the requirement of VEVRAA.

No Questions Available For This Stage

EEO Questionnaire (Voluntary) Disability (Data) - *Completed 07/17/2024 06:48PM*

Instructions

Form CC-305

Page 1 of 1OMB Control Number 1250-0005

Expires 05/31/2023

We are a federal contractor or subcontractor required by law to provide equal employment opportunity to qualified people with disabilities. We are also required to measure our progress toward having at least 7% of our workforce be individuals with disabilities. To do this, we must ask applicants and employees if they have a disability or have ever had a disability. Because a person may become disabled at any time, we ask all of our employees to update their information at least every five years.

Identifying yourself as an individual with a disability is voluntary, and we hope that you will choose to do so. Your answer will be maintained confidentially and not be seen by selecting officials or anyone else involved in making personnel decisions. Completing the form will not negatively impact you in any way, regardless of whether you have self-identified in the past. For more information about this form or the equal employment obligations of federal contractors under Section 503 of the Rehabilitation Act, visit the U.S. Department of Labor's Office of Federal Contract Compliance Programs (OFCCP) website at www.dol.gov/ofccp.

How do you know if you have a disability?

You are considered to have a disability if you have a physical or mental impairment or medical condition that substantially limits a major life activity, or if you have a history or record of such an impairment or medical condition. Disabilities include, but are not limited to:

Autism
Autoimmune disorder, for example, lupus, fibromyalgia, rheumatoid arthritis, or HIV/AIDS
Blind or low vision
Cancer
Cardiovascular or heart disease
Celiac disease
Cerebral palsy
Deaf or hard of hearing
Depression or anxiety
Diabetes
Epilepsy
Gastrointestinal disorders, for example, Crohn's Disease, or irritable bowel syndrome
Intellectual disability
Missing limbs or partially missing limbs
Nervous system condition for example, migraine headaches, Parkinson's disease, or Multiple sclerosis (MS)
Psychiatric condition, for example, bipolar disorder, schizophrenia, PTSD, or major depression

No Questions Available For This Stage

Application Agreement (Data) - *Completed 07/17/2024 06:48PM*

Instructions

I understand and acknowledge that nothing contained in this application, its supplement(s), or in any Company handbook, manual, rule, regulation, practice, or policy creates an employment contract, expressed or implied, between myself and the Company.

I further understand that, in the event that I am offered a position at the Company, my employment shall be at will, and as such, I acknowledge that my employment may be terminated at any time, either by me or the Company, with or without cause, and with or without notice. This paragraph shall be not applicable to me if and when my employment is governed by a collective bargaining agreement.

I authorize the Company to verify employment references in connection with my application for employment and to re-verify those references subsequently as the Company deems appropriate. I hereby release from all liability or damages those individuals, corporations, or organizations who provide such information to the Company. I understand that any such information provided shall become the exclusive property of the Company.

Upon my hire and in consideration of my employment, I agree to comply with all applicable policies, rules, regulations, and procedures of the Company. I understand that my failure to comply with those policies, rules, regulations or procedures may lead to disciplinary action against me, up to and including termination of my employment.

As a condition of employment, I consent to taking a Department of Transportation medical examination and such future examinations if required by federal law and/or by the Company. I understand any offer of employment is conditional upon my successful completion of such medical examinations.

UPS has established Uniform and Personal Appearance Guidelines, which apply to certain positions. UPS will review the Uniform and Personal Appearance Guidelines with me in more detail should I be offered a position in which the Uniform and Personal Appearance Guidelines apply. An applicant or employee may request an exception or change to, or an accommodation of, any condition of employment (including the UPS Uniform and Personal Appearance Guidelines) because of a sincerely held religious belief or practice.

This certifies that this application was completed by me or at my direction and that all entries on it and the information in it are true and complete to the best of my knowledge. I understand that any false or misleading statements, omissions, or failure on my part to fully answer any questions on this application may result in the rejection of my application for consideration of employment or my dismissal from employment, regardless of when such information is discovered.

I agree that my electronic signature is the legally binding equivalent to my handwritten signature. By my electronic signature, I acknowledge that I have carefully reviewed this Agreement and understand its contents.

I agree

EJF Review and Acknowledgement (Data) - *Completed 07/17/2024 06:49PM*

Instructions

I have read and reviewed the essential functions of this role:

Yes

Are you able to perform these Job functions?

I am able to perform the essential job functions

I may be able to perform the essential job functions with a disability related accommodation. I understand that medical documentation may be required to process this request and there is a maximum of 7 days to initiate this request otherwise the application process will terminate. I want to proceed with the request and complete the ADA form.

No Answer Provided

Are you able to perform these Job functions?

No Answer Provided

Accomodation Rule (Rule) - *Completed 07/17/2024 06:49PM*

Confirmation of Intent (Data) - *Completed 07/17/2024 06:49PM*

Stage Body

Now that you know more about being a [OPENING_NAME], please indicate below if you wish to pursue this position and continue with your application.

Position Title: [OPENING_NAME]

Selected Approximate Shift Hours: [SELECTED_SHIFT]

Employment Type: [OPENING_EMPLOYMENT_TYPE]

Pay Information: [OPENING_PAY_RANGE]

Please choose one of the follow options to continue:

I understand the job functions for role and I want to continue with my application. If hired, I commit to report for work daily and to be on time according to my work schedule

---

FAQ Rule (Rule) - *Completed 07/17/2024 06:49PM*

FCRA Notice (Data) - *Completed 07/17/2024 06:49PM*

Instructions

DISCLOSURE OF INTENTION TO OBTAIN CONSUMER REPORT FOR EMPLOYMENT PURPOSES

This disclosure is being provided to you pursuant to the federal Fair Credit Reporting Act ("FCRA"), 15 U.S.C. § 1681 et seq. Under the FCRA, United Parcel Service, Inc. ("UPS") is required to make a clear and conspicuous written disclosure to you that UPS may obtain a criminal background report, employment history, driving record, education history, and/or other consumer reports* about you from a consumer reporting agency. These consumer reports may be used to evaluate your eligibility for hire or your continued employment with UPS, or for other employment purposes. These consumer reports may be obtained by UPS at any time after the receipt of your authorization to obtain the reports, and, if you are hired by UPS, throughout your employment with UPS, subject to applicable law.

* Under the FCRA, a "consumer report" is any written, oral, or other communication of any information by a consumer reporting agency bearing on an individual's credit worthiness, credit standing, credit capacity, character, general reputation, personal characteristics, or mode of living which is used or expected to be used or collected in whole or in part for the purpose of serving as a factor in establishing the individual's eligibility for, among other things, employment.

AUTHORIZATION REGARDING INTENTION TO OBTAIN
CONSUMER REPORT FOR EMPLOYMENT PURPOSES

By signing below, you acknowledge and agree as follows:

- I voluntarily and fully authorize United Parcel Service, Inc. (“UPS”) to obtain consumer reports on me for employment purposes as set forth in the Disclosure of Intention to Obtain Consumer Report for Employment Purposes, which I received separately and signed to acknowledge my receipt and understanding;
- I voluntarily and fully authorize the release of all information necessary for UPS to obtain consumer reports on me for employment purposes as set forth in the Disclosure of Intention to Obtain Consumer Report for Employment Purposes, including but not limited to criminal records, employment records, driving records, and educational records;
- I agree that if I become employed by UPS, UPS is authorized by me, at any time during the course of my employment, to obtain subsequent criminal background reports, driving records, or other consumer reports about me so as to update, renew, extend or evaluate my continued employment, or to consider me for other employment positions, except where prohibited by applicable law;
- I understand and acknowledge that, if UPS obtains credit history information on me, it will be used to evaluate whether I would present an unacceptable risk of theft or other dishonest behavior in the job for which I am being considered; and
- I understand and acknowledge that UPS may be required to share the consumer reports it obtains about me, or the information contained therein, with appropriate third parties for employment-related purposes, and I expressly authorize UPS to make such disclosures.

I agree that my electronic signature is the legally binding equivalent to my handwritten signature. By my electronic signature, I acknowledge that I have carefully reviewed this agreement and understand its contents.

I agree

FCRA - State Group 1 Disclosure (CA, MN, NJ, OK) (Data) - *Completed 07/17/2024 06:49PM*

Instructions

ADDITIONAL DISCLOSURES REGARDING UPS’S INTENTION TO OBTAIN
A CONSUMER REPORT ABOUT YOU FOR EMPLOYMENT PURPOSES

If you live in or are applying for employment in any of the following states, please take note:

☐ CALIFORNIA: Because this position you are being considered for at United Parcel Services, Inc. ("UPS") will involve access to confidential financial and other business information and valuable property belonging to UPS's customers, a consumer report about you is necessary and important for UPS to review in order to evaluate whether you would present an unacceptable risk of theft or other dishonest behavior in the performance of your job. Accordingly, UPS intends to obtain a consumer report about you for employment purposes pursuant to section 1024.5(a)(7) of the California Labor Code. You may elect to receive a copy of the report, free of charge, by checking the box beneath your signature as indicated below.

For information regarding your privacy, please see the following link.

http://www.fadv.com/privacy-policy.aspx

☐ MINNESOTA: United Parcel Services, Inc. ("UPS") intends to obtain a consumer report about you for employment purposes. You may elect to receive a copy o the report, free of charge, by checking the box beneath your signature as indicated below. You also have the right, under

M.S.A. § 13C.02, subd. 3, to request additional information on the nature of the report by submitting a written request to First Advantage, the consumer reporting agency whose contact information is shown below, for a complete and accurate disclosure of the nature and scope of any consumer report UPS ordered about you. The consumer reporting agency must mail or deliver this disclosure to you within five days after its receipt of your request, or UPS's request made on your behalf, whichever date is later.

☐ NEW JERSEY: United Parcel Services, Inc. ("UPS") intends to obtain a consumer report about you for employment purposes. You may elect to receive a copy of the report, free of charge, by checking the box beneath your signature as indicated below.

☐ OKLAHOMA: United Parcel Services, Inc. ("UPS") intends to obtain a consumer report about you for employment purposes. You may elect to receive a copy of the report, free of charge, by checking the box beneath your signature as indicated below.

* * *

The consumer reporting agency that will prepare and provide the report to UPS is:

First Advantage

P.O. Box 105292

Atlanta, Georgia 30348

Phone: 1-800-845-6004

Fax: 678-694-2844

E-mail: consumer.documents@fadv.com

Web: www.fadv.com

I agree that my electronic signature is the legally binding equivalent to my handwritten signature. By my electronic signature, I acknowledge that i have carefully reviewed this agreement and understand its contents.

I agree

FCRA California Disclosure (Data) - *Completed 07/17/2024 06:49PM*

Instructions

ADDITIONAL DISCLOSURES FOR CALIFORNIA APPLICANTS

With your express authorization and consent, United Parcel Services, Inc. ("UPS") may obtain a report about you for employment purposes that is defined under the California Investigative Consumer Reporting Agencies Act, Cal. Civ. Code §§ 1786 to 1786.80, as an "investigative consumer report." The report will be prepared by:

First Advantage

P.O. Box 105292

Atlanta, Georgia 30348

Phone: 1-800-845-6004

Fax: 678-694-2844

E-mail: consumer.documents@fadv.com

Web: www.fadv.com

The report provided by First Advantage may include information on your character, general reputation, personal characteristics, and mode of living. Such information will be used to evaluate whether you would present an unacceptable risk of theft or other dishonest behavior in the job for which you are being considered.

Pursuant to section 1786.22 of the California Civil Code, you may view the file maintained on you by First Advantage during normal business hours. You may obtain a copy of the file, upon submitting proper identification and paying the costs of duplication services, by appearing at First Advantage's offices in person, during normal business hours and on reasonable notice, or by certified mail. You may also receive a summary of the file by telephone, upon submitting proper identification and a written request. First Advantage has trained personnel available to explain your file to you, including any coded information, and will provide a written explanation of any coded information contained in your file. If you appear in person, you may be accompanied by one other person, provided that person furnishes proper identification. "Proper identification" includes documents such as a valid driver's license, social security account number, military identification card, and credit cards. If you cannot identify yourself with such information, the consumer reporting agency may require additional information concerning your employment and personal or family history to verify your identity.

I agree that my electronic signature is the legally binding equivalent to my handwritten signature. By my electronic signature, I acknowledge that I have carefully reviewed this Agreement and understand it's contents.

I agree

Tentative Hired Date (Data) - *Completed 07/17/2024 06:49PM*

Stage Body

Please select your earliest availability from the options below.

As you continue your application and have successfully completed all required forms and documents, you will select your official start date. Your official start date may differ from the earliest availability date you select below.

What is the earliest date you could be available to start?

53398214-5e20-4517-ab90-7be2ef552392

Tentative Hired Date Rule (Rule) - *Completed 07/17/2024 06:49PM*

Integration BGC Consent (First Advantage 1-step) - *Completed 07/17/2024 06:52PM*

Rehire Checks Eligibility (Custom) - *Completed 07/17/2024 06:52PM*

Instructions

Please wait a moment you are moving forward in your process we will need to validate your rehire eligibility with UPS.

Rehire Check Rule (Rule) - *Completed 07/17/2024 06:52PM*

Confirmation of Pay (Data) - *Completed 07/17/2024 06:53PM*

Stage Body

Now that you know more about being a [OPENING_NAME], please indicate below if you wish to pursue this position and continue with your application.

Position Title: [OPENING_NAME]

Tentative Hired Date: [APPLICANT_DATA_TENTATIVE_HIRING_GOAL_START_DATE_TIME]

Selected Approximate Shift Hours: [SELECTED_SHIFT]

Employment Type: [OPENING_EMPLOYMENT_TYPE]

Pay Information: [APPLICANT_DATA_TENTATIVE_HIRING_GOAL_PAY_RATE]

Please choose one of the following options to continue:

I accept this pay

Confirmation of Pay Rule (Rule) - *Completed 07/17/2024 06:53PM*

UPS Policy Sign Off - CA (Multistage) - *Completed 07/17/2024 06:54PM*

Our Commitment to Integrity-deleted-1759439938 (Data) -

Instructions

UPS has a long tradition of transforming and adapting to the needs of our customers, but our commitment to integrity remains steadfast. We remain committed to a set of beliefs that guided our founders and their successors, and currently guides employees and representatives of UPS.

It is this commitment that will continue to move us forward.

More than 100 years ago, UPS Founder Jim Casey began building our company by asking retailers for their trust. They entrusted us with their business, and every day, UPS people honored that trust and maintained relationships with customers by acting with integrity. We have preserved this philosophy over the years, and it has become our guiding principle.

Today, UPS employees and representatives continue to uphold our strong brand and the legacy of integrity that Jim started.

This requires us to conduct business fairly, honestly, and ethically.

For our company to survive and remain successful, we must have a sound set of beliefs that serves as the foundation for our decisions and actions. We must remember that our success, reputation, and brand were developed over many years and can be damaged if we do not act responsibly with an uncompromising set of common beliefs.

A commitment to integrity is about creating a climate for continued success. It is about creating an environment where people can make good decisions. It is about doing the right thing in every business situation. By using good judgment and respecting others, UPS's commitment to integrity will endure.

UPS's reputation for ethical behavior has enabled us to attract and retain the best people and loyal customers; it has opened doors in new and emerging global markets and allowed us to transform our business to meet changing customer needs.

Compliance with our legal and ethical obligations is the responsibility of every UPS employee and representative, as is the responsibility to report potential violations of those obligations. Reporting may be accomplished directly through a discussion with a member of the management team or by using the UPS Help Line. Information about the UPS Help Line is available on UPSers.com.

No Questions Available For This Stage

Professional Conduct/Anti Harassment-deleted-1759439965 (Data) -

Instructions

We want UPS to be a safe place to work where everyone is treated with dignity and

respect. When you treat each other with respect, you are helping make UPS a great

place to work and one where we all are proud to be UPSers.

A few rules we expect everyone to live by:

· Keep your hands to yourself.

No touching people in an inappropriate way.

- Don't make sexual advances at work – ever.
- Don't make comments about or refer to anyone's gender, race, religion, sexual orientation or ethnicity in an offensive or insulting way. No matter our differences, being a UPSer should unite us.
- Don't send inappropriate text messages or social media posts to UPSers – ever.
- That includes language, symbols or images that could be offensive based on race, ethnicity, sexual identity, gender, religion or other factors.
- Don't display language, symbols or images on your personal belongings or on company property that could be considered offensive based on race,

Help us make this the best place to work. If you experience discrimination, sexual or

racial misconduct, use our Open Door Policy to raise issues with your management team or a trusted leader in your function. You can also use the UPSEthicsHotline.com in the U.S., the Ethics Hotline at 1-800-220-4126.

Every report of misconduct will be investigated thoroughly and fairly – and we will not

allow retaliation against UPSers who report concerns.

Bottom line: Follow the golden rule – treat others as you expect to be treated.

We have a zero-tolerance policy. Don't follow the rules, you could lose your job.

No Questions Available For This Stage

Drug and Alcohol Agreement-deleted-1759439928 (Data) -

Instructions

At UPS we have a vital interest in the safety of our employees and the general public. By maintaining the highest standards for our employees we ensure the efficient and safe operations necessary to provide reliable services to our customers. It is well recognized that individuals who use illicit drugs or abuse alcohol are more likely to have workplace accidents, incur greater amounts of lost time, and perform their job requirements in a substandard manner.

There is an even greater concern at United Parcel Service because of the nature of our service. Therefore, it is our intent to continue to promote a safe and secure work environment free of illicit drugs and alcohol abuse or use.

We maintain a drug-free and alcohol-free workplace. We maintain an Employee Assistance Procedure to help our employees who may be suffering from substance abuse. Any employee may volunteer for this service. Our Employee Assistance Procedure assures that employees who develop drug or alcohol problems will have access to medical evaluation and appropriate community-based treatment.

We prohibit the illegal possession, use, sale, distribution, dispensing, transfer, or manufacturing of a controlled substance or alcohol while at work, company property, or while on company business. This includes marijuana, whether the employee has a prescription, or marijuana is legalized for recreational/medical use in the applicable state. No employee is permitted to go on duty or remain on duty if he or she possesses or is under the influence of an unauthorized controlled substance or alcohol in their system. In addition, employees are not permitted to go on duty or remain on duty if they may be impaired by the presence of any authorized substance.

We also require, if necessary, a fitness-for-duty medical evaluation any time an employee, by his or her actions or behavior, gives UPS reasonable cause to determine whether an employee has violated the UPS Drug and Alcohol Policy.

United Parcel Service will comply with all U.S. Department of Transportation rules and regulations concerning controlled substances and alcohol testing for government mandated classifications of employees.

No Questions Available For This Stage

Crisis Management & Workplace Violence Prevention Policy-deleted-1759439933 (Data) -

Instructions

UPS is committed to a safe working environment, free of threats, intimidation, and physical harm. All employees have a right to work in a safe environment and share the responsibility for assuring each other's safety. UPS has adopted a policy of **zero tolerance with respect to violence in the workplace.**

UPS prohibits violence related conduct, including but not limited to, physical assaults, fighting, threatening comments, intimidation, and the intentional destruction of any company property, employee property, or merchandise. Any comments or behavior that could reasonably be interpreted as an intent to do harm to employees or property will be considered a threat. We also prohibit the possession and/or use of weapons by any employee on UPS property.

Any employee who believes he or she may be the target of violence or threats of violence, or is aware of violent or threatening conduct by another individual that could result in injury to a UPS employee or the destruction of property, has a responsibility to immediately **report the situation to his or her immediate supervisor or manager.** If the employee is unable or prefers not to contact their immediate supervisor or manager, the employee can **promptly contact one of the four management representatives listed below or call the UPS Help Line at 1-800-220-4126 — 24 hours a day.**

Your information will be treated as important and appropriate action, including an investigation, will be taken. If an investigation reveals that this policy has been violated, such conduct will be dealt with appropriately. This may include disciplinary action up to and including termination of employment of person(s) in violation of this policy. Individuals violating laws also may be subject to criminal prosecution.

To the extent possible, investigations will be kept confidential among the employees concerned and those employees who need to be informed in order to complete the investigation. Any employee who brings a report to the attention of the company in good faith and/or provides information related to such a report will not be adversely affected or retaliated against for doing so.

- **Contact:**
- **Human Resources Manager**
- **Labor Relations Manager**
- **Occupational Health management**
- **Security Manager**

No Questions Available For This Stage

California Paid Family Leave Benefits (DE 2511).pdf-deleted-1759439943(Data) -

No Questions Available For This Stage

Honesty in Employment-deleted-1759439959 (Data) -

Instructions

As an employee of United Parcel Service, it is essential that you thoroughly understand how highly we regard honesty from all employees, so much so, that honesty is a company policy.

THE UPS POLICY BOOK STATES:

"We Insist Upon Integrity in Our People. We understand that integrity is fundamental to how we run our business and essential to maintain compliance with our policies and legal requirements. Operating with integrity means we provide an atmosphere in which our people can perform their jobs in an ethical manner. We present our company honestly to employees and, in turn, expect them to be honest with us."

"We expect honesty from our people in all their duties, including their handling of money, merchandise, and property with which they are entrusted. We insist on integrity in the preparation and approval of all reports."

"We all expect our people to be honest in their assessment of themselves, such as the time and commitment they give to their job performance, the fairness they seek in their dealings with others, or the objectivity they use in evaluating their own contributions."

"The great majority of our people are of high moral character. However, when we do discover a dishonest person in our organization, we deal with that individual quickly and firmly. For our company to be known for its integrity, each of us must meet high standards."

CONSEQUENCES OF DISHONESTY

DISHONESTY WILL result in immediate dismissal and possible criminal prosecution.

Since many of the packages you will handle move between states, theft of these shipments is a felony violation investigated by the FBI and other law enforcement agencies. If convicted, the maximum penalty for thefts involving interstate commerce is 10 year imprisonment and/or a fine of $5,000.00.

In addition to theft, there are other types of dishonesty such as: tampering, or the misuse or theft of intellectual properties, privileged information, overgoods, or monies handled by our employee's. (Note: Any and all money you receive each day, must be properly accounted for and turned in at end of your work shift that same day.)

EFFECTS OF A FELONY

A felony is a class of crime more severe than a misdemeanor, and is punishable by imprisonment, a fine, or both. A felony conviction results in a permanent mark on a person's record which may never be removed. This record may cause an individual to suffer severe consequences, and may also cause them to be disadvantaged in other subsequent life pursuits.

OTHER INFORMATION

WE EXPECT all employees to report acts of dishonesty. In an effort to prevent thefts, we have instituted a reward of up to $5,000.00, payable to UPS employees, for information leading to the arrest and conviction of any employee who has stolen merchandise or other valuables from our company.

I have read the above information and I understand the UPS policy that reflects their high regard for honesty. I understand my obligations to maintain personal honesty and prevent the dishonesty of others.

No Questions Available For This Stage

California Disability Insurance Provisions (DE 2515)-deleted-1759439953 (Data) -

No Questions Available For This Stage

Notice of Electronic Monitoring-deleted-1759439949 (Data) -

Instructions

UPS Employees should have no reasonable expectation of privacy when using or communicating over UPS computer systems, devices, networks, IT systems, web sites, mobile applications, telematics devices, or telecommunications devices or technologies. Any and all telephone conversations or transmissions, electronic mail or transmissions, or internet access or usage by an employee by any electronic device or system, including but not limited to the use of a computer, telephone, wire, radio or electromagnetic, photoelectronic or photo-optical systems may be subject to monitoring at any and all times and by any lawful means. Employer monitoring may include employees' use of a computer, telephone, wire, radio or electromagnetic, photoelectric, or photo-optical systems.

No Questions Available For This Stage

Safety Agreement-deleted-1759439921 (Data) -

Instructions

WE STRESS SAFETY THROUGHOUT OUR COMPANY

The safety of our people and of the general public is of utmost importance to us. We train our people to avoid injury to themselves and others in all phases of their work. We do not tolerate unsafe work practices. We encourage the involvement of our people in safety awareness activities and give recognition to employees for safety accomplishments. We are all committed to fostering the most effective safe practices in all our work.

By meeting our own high safety standards, we will be contributing to the well-being of our people, our company, and the communities we serve.

No Questions Available For This Stage

Professional Conduct And Anti-Harassment Policy-deleted-1759439975 (Data) -

Instructions

UPS is proud of its professional and congenial work environment and will take all necessary steps to ensure that our workplace remains pleasant for everyone. In order to maintain a positive work environment, all employees must treat each other with courtesy, consideration, and professionalism. The Company prohibits unprofessional and discourteous actions, even if those actions do not constitute unlawful harassment.

In addition, harassment of any person or group of persons on the basis of race, sex, national origin, disability, sexual orientation, gender identity, veteran/military status, pregnancy, age or religion is a form of unlawful discrimination which is specifically prohibited in the UPS community and which may subject the Company and/or individual harasser to liability. Accordingly, derogatory or other inappropriate remarks, slurs, threats or jokes will not be tolerated. Likewise, inappropriate physical contact will not be allowed in our workplace. In other words, UPS will not tolerate harassment of any employee by anyone for any reason.

Sexual harassment is one example of inappropriate harassing behavior. Specifically, sexual harassment, includes unwelcome sexual advances, requests for sexual favors, or any other visual, verbal or physical conduct of a sexual nature when:

1. Submission to the conduct is made either implicitly or explicitly a condition of the individual's employment;
2. Submission to or rejection of the conduct is used as the basis for an employment decision affecting the harassed employee; or

3. The harassment has the purpose or effect of unreasonably interfering with the employee's work performance or creating an environment that is intimidating, hostile, or offensive to the employee.

Each employee must exercise his or her own good judgment to avoid engaging in conduct that may be perceived by others as harassment. Generally, forms of harassment include, but are not limited to:

1. Verbal: repeated sexual innuendos, racial or sexual epithets, derogatory slurs or remarks, off-color jokes, propositions, threats, or suggestive or insulting sounds;
2. Visual/Non-verbal: derogatory posters, cartoons, or drawings; suggestive objects or pictures; graphic commentaries; leering; or obscene gestures;
3. Physical: unwanted physical contact, including horseplay, touching, interference with an individual's normal work movement, or assault; and
4. Other: making or threatening reprisals as a result of a negative response to harassment

Any employee who witnesses objectionable conduct or believes that he or she is subject to or may be subjected to objectionable conduct must report it immediately to a supervisor or manager, a Human Resources representative, the Human Resources manager, the Employee Relations manager, or the UPS Help Line. These reports may be made verbally or in writing. Do not allow an inappropriate situation to continue by not reporting it, regardless of who is creating that situation. No employee in this organization is exempt from this policy.

In response to such reports, UPS will conduct a prompt and thorough investigation. To the extent possible, investigations will be kept confidential among the employees concerned and those employees who need to be informed in order to complete the investigation. Any employee who brings such a report to the attention of the Company in good faith and/or provides information related to such a report will not be adversely affected or retaliated against. UPS will take immediate and appropriate corrective action whenever it determines that a violation of a policy has occurred. Any employee who violates this policy may be subject to termination or other disciplinary action.

No Questions Available For This Stage

Workplace Violence Prevention Policy from the Business Code of Conduct-deleted-1759439970 (Data) -

Instructions

UPS is committed to a safe working environment, free of threats, intimidation, and physical harm. All employees have a right to work in a safe environment and share the responsibility for assuring each other's safety. UPS has adopted a policy of zero tolerance with respect to violence in the workplace.

UPS prohibits violent conduct, including but not limited to, physical assaults, fighting,

threatening comments, intimidation, and the intentional destruction of any company property, employee property, or merchandise. Any comments or behavior that could reasonably be interpreted as intent to do harm to employees or property will be considered a threat. We also prohibit the possession and/or use of weapons by any employee on UPS property.

Any employee who believes he or she may be the target of violence or threats of violence, or is aware of violent or threatening conduct by another individual that could result in injury to a UPS employee or the destruction of property, has a responsibility to immediately report the situation to his or her immediate supervisor or manager. If the employee is unable or prefers not to contact their immediate supervisor or manager, the employee should promptly contact any Human Resources manager, Occupational Health manager, or Security manager or call the UPS Help Line at 1-800-220-4126 or TTY 800-266-0262.

Employee information will be treated as important and appropriate action, including an investigation, will be taken. If an investigation reveals that this policy has been violated, such conduct will be dealt with appropriately. This may include disciplinary action up to and including termination of employment of person(s) in violation of this policy. Individuals violating laws also may be subject to criminal prosecution.

To the extent possible, investigations will be kept confidential among the employees concerned and those employees who need to be informed in order to complete the investigation. Any employee who brings a report to the attention of the company in good faith and/or provides information related to such a report will not adversely affected or retaliated against. *(page 54 UPS Employee Handbook Guide)*

No Questions Available For This Stage

Onboarding Information (Paycheck and Opt Out States) (Multistage) - *Completed 07/17/2024 06:57PM*

POST OFFER: EEOC - Voluntary Self-Identification of Disability-deleted-1751231554 (Data) -

Instructions

Form CC-305

Page 1 of 1OMB Control Number 1250-0005

Expires 05/31/2023

Why are you being asked to complete this form?

We are a federal contractor or subcontractor required by law to provide equal employment opportunity to qualified people with disabilities. We are also required to measure our progress toward having at least 7% of our workforce be individuals with disabilities. To do this, we must ask applicants and employees if they have a disability or have ever had a disability. Because a person may become disabled at any time, we ask all of our employees to update their information at least every five years.

Identifying yourself as an individual with a disability is voluntary, and we hope that you will choose to do so. Your answer will be maintained confidentially and not be seen by selecting officials or anyone else involved in making personnel decisions. Completing the form will not negatively impact you in any way, regardless of whether you have self-identified in the past. For more information about this form or the equal employment obligations of federal contractors under Section 503 of the Rehabilitation Act, visit the U.S. Department of Labor's Office of Federal Contract Compliance Programs (OFCCP) website at www.dol.gov/ofccp.

How do you know if you have a disability?

You are considered to have a disability if you have a physical or mental impairment or medical condition that substantially limits a major life activity, or if you have a history or record of such an impairment or medical condition. Disabilities include, but are not limited to:

- Autism
- Autoimmune disorder, for example, lupus, fibromyalgia, rheumatoid arthritis, or HIV/AIDS

- Blind or low vision
- Cancer
- Cardiovascular or heart disease
- Celiac disease
- Cerebral palsy
- Deaf or hard of hearing
- Depression or anxiety
- Diabetes
- Epilepsy
- Gastrointestinal disorders, for example, Crohn's Disease, or irritable bowel syndrome
- Intellectual disability
- Missing limbs or partially missing limbs
- Nervous system condition for example, migraine headaches, Parkinson's disease, or Multiple sclerosis (MS)
- Psychiatric condition, for example, bipolar disorder, schizophrenia, PTSD, or major depression

No Questions Available For This Stage

Payroll Options-deleted-1751231556 (Data) -

Instructions

Below are your available options for receiving pay. If you already have an existing bank account, it's as easy as providing the account and bank routing number. If you do not have an existing bank account, you may have the option to sign up to have your pay direct deposited to a U.S. Bank Focus Card.

No Questions Available For This Stage

Post Offer: EEOC - Invitation to Self - Identify, Military/Veteran Status-deleted-1751231563 (Data) -

Instructions

This employer is a Government contractor subject to the Vietnam Era Veterans' Readjustment Assistance Act of 1974, as amended by the Jobs for Veterans Act of 2002, 38 U.S.C.4212 (VEVRAA), which requires Government contractors to take affirmative action to employ and advance in employment: (1) disabled veterans; (2) recently separated veterans; (3) active duty wartime or campaign badge veterans; and (4) Armed Forces service medal veterans. These classifications are defined as follows:

- A "disabled veteran" is one of the following:
- A veteran of the U.S. military, ground, naval or air service who is entitled to compensation (or who but for the receipt of military retired pay would be entitled to compensation) under laws administered by the Secretary of Veterans Affairs; or
- A person who was discharged or released from active duty because of a service-connected disability.
- A "recently separated veteran" means any veteran during the three-year period beginning on the date of such veteran's discharge or release from active duty in the U.S.military, ground, naval, or air service.
- An "active duty wartime or campaign badge veteran" means a veteran who served on active duty in the U.S. military, ground, naval or air service during a war, or ¡n a campaign or expedition for which a campaign badge has been authorized under the laws administered by the Department of Defense. "Period of War" is defined for these purposes by the Department of Labor as:

- June 27, 1950 – January 31, 1955 (Korean Conflict);
- February 28, 1961 – May 7, 1975 (for veterans serving in the Republic of Vietnam);
- August 5, 1964 – May 7, 1975 (for all other veterans who served during the Vietnam conflict); and
- August 2, 1990 – present (Gulf War)

Information on the wars, campaigns, or expeditions for which a campaign badge has been authorized may be found on the following website, https://www.opm.gov/policy-data-oversight/veterans-services/vet-guide/.

An "Armed forces service medal veteran" means a veteran who, while serving on active duty in the U.S. military, ground, naval or air service, participated in a United States military operation for which an Armed Forces service medal was awarded pursuant to Executive Order 12985.

Protected veterans may have additional rights under USERRA - the Uniformed Services Employment and Reemployment Rights Act. In particular, if you were absent from employment in order to perform service in the uniformed service, you may be entitled to be reemployed by your employer in the position you would have obtained with reasonable certainty if not for the absence due to service. For more information, call the U.S. Department of Labor's Veterans Employment and Training Service (VETS), toll-free, at 1-866-4-USA-DOL.

As a Government contractor subject to VEVRAA, we are required to submit a report to the United States Department of Labor each year identifying the number of our employees belonging to a "protected veteran" category. If you believe you belong to any of the categories of protected veterans listed above, please indicate by checking the appropriate box below.

PLEASE CHOOSE ONE OF THE FOLLOWING CLASSIFICATIONS:

- I have never served in the U.S. Military
- I identify as one or more of the classifications of protected veteran listed above
- I identify as one or more of the classifications of protected veteran listed above and am currently serving in the U.S. military
- I am currently serving in the U.S. military
- I am a U.S. military veteran, but not a protected veteran listed above
- I choose not to voluntarily self-disclose whether I am a U.S. military veteran or a non-veteran

If you are a disabled veteran it would assist us if you tell us whether there are accommodations we could make that would enable you to perform the essential functions of the job, including special equipment, changes in the physical layout of the job, changes in the way the job is customarily performed, provision of personal assistance services or other accommodations. This information will assist us in making reasonable accommodations for your disability.

Submission of this information is voluntary and refusal to provide it will not subject you to any adverse treatment. The information provided will be used only in ways that are not inconsistent with the Vietnam Era Veterans' Readjustment Assistance Act of 1974, as amended.

The information you submit will be kept confidential, except that (i) supervisors and managers may be informed regarding restrictions on the work or duties of disabled veterans, and regarding necessary accommodations; (ii) first aid and safety personnel may be informed, when and to the extent appropriate, if you have a condition that might require emergency treatment; and (iii) Government officials engaged in enforcing laws administered by the Office of Federal Contract Compliance Programs, or enforcing the Americans with Disabilities Act, may be informed; and (iv) UPS may also use your veteran status for internal reporting on our goals for diversity and inclusion as well as to help plan recognition opportunities for our veterans (i.e., Veteran's Day)..

UPS maintains an affirmative action program designed to promote the employment and advancement in employment of veterans; including the protected veterans listed above consistent with the requirement of VEVRAA.

No Questions Available For This Stage

Emergency Contact-deleted-1751231570 (Data) -

No Questions Available For This Stage

Education-deleted-1751231574 (Data) -

No Questions Available For This Stage

Personal Information-deleted-1751231565 (Data) -

No Questions Available For This Stage

Pay Card Rule (Rule) - *Completed 07/17/2024 06:57PM*

E&Y WOTC (E&Y WOTC) - *Completed 07/17/2024 06:57PM*

Training Video (Data) - *Completed 07/17/2024 06:52PM*

Instructions

Please watch the safety training video below to help you get ready for your first day on the job. Once complete, you will be able to select your first day of work.

Stage Body

<iframe width="560" height="315" src="https://www.youtube.com/embed/-7SOK6CpRzo?si=9cnSBAUCJomU-pwP" title="YouTube video player" frameborder="0" allow="accelerometer; autoplay; clipboard-write; encrypted-media; gyroscope; picture-in-picture; web-share" referrerpolicy="strict-origin-when-cross-origin" allowfullscreen></iframe>

No Questions Available For This Stage

Hired Date (Scheduler) - *Completed 07/17/2024 07:06PM*

Attended

N/A

Scheduled

~~07/22/2024 04:00PM - 08:00PM (PDT)~~ *Cancelled 07/21/2024 03:59AM*

Location

11800 S HARLAN RD LATHROP California 95330

Host

UPS Jobs

I-9 Section 2 Not Complete (Custom) - *Completed 07/17/2024 07:18PM*

Instructions

Almost done! The next step is to complete section 2 of your I-9 form. Check out this video for a step-by-step guide to completing section 2: https:/UPSjobs.link/i9help

You'll receive an e-mail from Equifax with instructions. The e-mail will be sent from i-9management@equifax.com. It's very important that you complete this step as soon as possible and before your first day of work.

If you have any questions, call 833-480-0064 and select option 3.

Thank you,

UPS Employment Center

Ready to Hire (Custom) - *Completed 07/21/2024 03:59AM*

Instructions

You have now completed the application process. You will receive a welcome e-mail 24 hours prior to your scheduled start date at the email address you submitted with your application. This e-mail will include all necessary information for preparing for your first day of work.

If you have any questions or do not receive this e-mail message, please call 833-480-0064.

Rejected (Rejected) - *Current Stage*

Instructions

Stage Body

This opportunity was not a match at this time. However, there are many other opportunities at UPS across a variety of roles, schedules, and availability — including full-time, part-time, seasonal, and year-round positions. Click below to explore more at UPSjobs.com, and be sure to sign up for job alerts to be the first to know when new openings become available.

Explore Jobs at UPS

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Compliance Center - Deprecated (Equifax Compliance Center) - *Completed 07/17/2024 07:05PM*

Rejected (Rejected) - *Current Stage*

Instructions

Stage Body

This opportunity was not a match at this time. However, there are many other opportunities at UPS across a variety of roles, schedules, and availability — including full-time, part-time, seasonal, and year-round positions. Click below to explore more at UPSjobs.com, and be sure to sign up for job alerts to be the first to know when new openings become available.

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LATHROP HUB (CALAH) - 06 - Sourcing Only

Job Selector (Job Selector) - *Completed 07/17/2024 06:46PM*

Instructions

Due to high demand, please be aware you may not find the role you originally applied for as UPS roles often fill before they can be unposted from job boards.

This page is designed to help you find a role that best fits your needs (e.g., preferred location, different pay/hours). The miles displayed in the descriptions represent the approximate distance from your home zip code to that facility.

Being on time is very important at UPS, so please ensure your commute distance and time is manageable on a consistent basis. If you do not see a role that fits your needs, we encourage you to sign up for job alerts on upsjobs.com.